MUNETSI NYAUDE
versus
MERCY NYAUDE (NEE CHAYA)

HIGH COURT
PHILLIPS J
HARARE;03 November 2025

N. Mugiya for the plaintiff
P. Mujawo and *M.M. Sibanda* for the defendant

PHILLIPS J

Introduction

This matter concerns the distribution of matrimonial property following a decree of divorce which was granted on 5 September 2024. The only live issue for determination is the distribution of immovable properties which were acquired during the subsistence of the marriage. The plaintiff alleges that the assets are not capable of being distributed as all of the listed properties no longer form part of the matrimonial assets. The defendant insists that the properties still form part of the matrimonial assets alleging that the plaintiff rushed to hide all the properties from her in 2021 after she withdrew the initial Matrimonial Summons under case number HC5480/21 which she had filed and then withdrew. This court will endeavour to ascertain whether or not these properties fall under the ambit of what constitutes matrimonial property and if so, what is the equitable distribution of such.

Factual Background.

The Plaintiff instituted summons for divorce against the defendant in 2024. The parties managed to find each other on all other ancillary issues relating to divorce except for the sharing of the matrimonial properties. The parties filed a chamber application to finalise their Consent Paper as an order of this court and only referred to trial the issue relating to distribution of immovable and movable matrimonial properties. Initially, the parties placed several immovable properties and some movables in issue. During the trial, the defendant abandoned her claims towards the movable properties. The immovable properties that were

placed before this court for determination include House No. 7810 Belvedere West, Harare, House No. 2269 Hatfield - 44B Airport Road, Harare, House No. 15321 New Zengeza, Chitungwiza, House No. 2312 Epworth, House No. 1727 Gaza O, Chipinge, A residential stand in Eyecourt and a rural home in Mutoko. During trial, having failed to substantiate the claim to House No. 2312 Epworth, the defendant conceded and did not continue with her claim, the property is therefore no longer part of the issues.

Issues for Determination.

1. Whether or not the immovable properties listed by the Defendant constitute matrimonial property.
2. What constitutes fair and equitable distribution of the matrimonial property if there is any.

Relief Sought (as per the original summons)

a. *A decree of divorce.*
b. *An order for custody of the minor children namely Shyleen Nyaude born 10 February 2005 and Shekhaina Nyaude born 23 October 2015 be awarded to the defendant with the plaintiff exercising access rights on the last weekend every month and in cases of emergency.*
c. *An order that maintenance be regulated in terms of the extant court order granted at Harare Magistrates Court under Case No. M4726/16.*
d. *An order of sharing of property in terms of paragraph 11 of the declaration. [the parties acquired various household goods and effects all of which are in the possession and control of the defendant. The plaintiff proposes that the defendant be allowed to retain all the said household goods as her sole property.]*
e. *Each party to bear its own costs.*

The Applicable Law

The division of assets owned by spouses at the dissolution of a marriage is governed by section 7 of the Matrimonial Causes Act, [*Chapter 5:13*].

Section 7 (1) empowers court to distribute the assets and to even transfer assets owned by one spouse to the other. Section 7(4) then provides some of the factors to consider in the exercise of the courts discretion in distributing or sharing the assets. In that regard s 7(4) provides that: -

> "In making an order in terms of subsection (1) an appropriate court shall have regard to all the circumstances of the case, including the following—
> (a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
> (b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;

(c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
(d) the age and physical and mental condition of each spouse and child;
(e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
(f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
(g) the duration of the marriage;
and in so doing the court shall endeavour as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have in had a normal marriage relationship continued between the spouses."

In the case of *Shenje* v *Shenje* 2001 (2) ZLR 160 (H) GILESPIE J at 163F made the following comment in relation to the provisions of s 7(4) of the Matrimonial Causes Act [*Chapter 5:13*]: -

> "In deciding what is reasonable, practical and just in any division, the court is enjoined to have regard to all the circumstances of the case. A number of the more important, and more usual, circumstances are listed in the subsection. The list is not complete. It is not possible to give a complete list of all possible relevant factors. The decision as to a property division order is an exercise of judicial discretion, based on all relevant factors, aimed at achieved a reasonable, practical and just division which secures for each party the advantage they can fairly expect from having been married to one another, and avoids the disadvantages, to the extent they are not inevitable, of becoming divorced".

The court clearly stated in the case of *Usayi* v *Usayi* SC 11/03 that;

> "…the Act speaks of direct and indirect contributions. How can one qualify in monetary terms the contribution of a wife and mother who for 39 years faithfully performed her duties as wife, mother, counsellor, domestic worker, house keeper, day and night nurse for her husband and children? How can one place a monetary value on the love, thoughtfulness and attention to detail that she puts into all the routine and sometimes boring duties attendant on keeping a household running smoothly and a husband and children happy"

In *Mutizhe* v *Mutizhe (nee Fuwe)* HH 483-18 a wife who made no financial contribution but

> "… contributed in her own way to the success of the marriage for that period. Not only was she a provider of a homely environment but she also took care of the couple's children and provided comfort to Plaintiff. In my view, an award of 35% share in the Mabvazuva property to the defendant would be just and equitable. This is the only immovable property available for division and apportionment between this couple that has been together for over 20 years".

The court has wide discretion which ought to be exercised judiciously so far as proprietary issues are concerned, and to ensure, as far as practically possible, that a fair and just disposition is reached. It is not proper to enrich or impoverish either of the spouses. In terms of the Matrimonial Causes Act, the assets to be considered in the distribution are assets

owned or held by the spouses individually or jointly as at the time of the dissolution of the marriage.

In *Sithole* v *Sithole* HH 674-14 at p 9 of the cyclostyled judgment it was reiterated that:

> "It is trite law that a wife cannot bar her husband from selling assets registered in his name more so when no divorce action requiring the distribution of those assets is instituted. However, court can intervene where a sale is not genuine but is meant to defeat the wife's cause."

Equally in *Muswere* v *Makanza* 2004 (2) ZLR 262, MAKARAU J (as she then was) had occasion to deal with a situation where a husband had disposed of the house that the wife believed she had a share in. The wife had argued that the husband should not have disposed it without her consent. The learned judge at p 266 D-E stated that:

> "The position in our law is therefore that a wife cannot even stop her husband from selling the matrimonial home or any other immovable property registered in his sole name but forming the joint matrimonial estate. There must be some evidence that, in disposing the property, the husband is disposing it at under value and to a scoundrel. Mere knowledge that the seller of the property is a married man who does not have the consent of the wife to dispose of the property is not enough."

The courts have held, in relation to immovable property, that due regard is to be given to the need to come up with a fair distribution as correctly held by CHITAKUNYE J in *Kwedza* v *Kwedza* HH 34-12 where he remarked:

> "It is only fair that whatever apportionment or distribution is done, it does not burden the defendant so much that he is left without accommodation."

In *Pedzisai Miriam Lilliethy Garwe* v *Daniel Garwe HH* 408/18 where the court stated that

> "Whilst it is indeed true that a company is a separate legal entity from the shareholders who in this case are husband and wife. There are instances where the corporate veil has been lifted and assets distributed between spouses at the dissolution of the marriage."

CHITAKUNYE J, as he was then, in *Kanoyangwa* v *Kanoyangwa* 2011 (1) ZLR 90 (H) stated as follows:

> "It is apparent that the at the end of the inquiry or trial court must endeavour to distribute the property in such a way as to place the parties and the children in the position they would have been in had a normal marriage relationship continued."

Application of the law to the facts

Though the issues for trial refer to matrimonial property, the proper term as per the above section is 'assets of the spouses. The term 'assets of the spouses' has been construed to

include all such property or assets belonging to a spouse at the time of the dissolution of the marriage. Such assets may belong to spouses in their individual capacity or jointly owned. The assets may have been acquired before or during the marriage. What is of importance is that the asset must belong to one or both spouses at the dissolution of the marriage.

Once assets belonging to either or both spouses have been identified the next stage is to determine how such assets should be distributed. It is at this stage that s 7(4) of the Act is invoked. That subsection enjoins the court to consider all the circumstances of the case, including factors specified therein from subsections (a) to (g) with a view to ensure that the distribution will place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses. Where a spouse wishes to have an asset excluded from consideration in terms of s 7(3) of the Act, the onus is upon that spouse to show that the asset falls within that category of assets to be excluded. Without such exclusion all assets must be placed on the table for consideration. It is during the process of consideration that the spouses' preferences including manner of acquisition will be taken into account. It must, however, be borne in mind that aspects such as the manner of acquisition, by whom an asset was acquired and how the asset is held would not necessarily result in that asset being awarded to the spouse that acquired it.

I will deal with each asset in turn.

Belvedere (No. 7810) and Hatfield (No. 2269/44B Airport Road):

These two properties, Belvedere and Hatfield, were obtained in 2003 and 2004 respectively, during the subsistence of the marriage. Plaintiff's evidence is that these properties were subject to a High Court order under HCH4026/22 dated 13 July 2022 for satisfaction of a US$65,000 debt to Chamunorwa Takundwa. An eviction of the parties actually occurred from the Belvedere property under HCH781/23, a matter in which the defendant unsuccessfully attempted to challenge execution through an application for stay of execution, which was dismissed under HCH2244/24.

At trial, the transfer formalities to Chamunorwa Takundwa were discussed, the plaintiff was unable to present neither a writ of execution nor any transfer paperwork to Mr Chamunorwa who also happens to be the Plaintiff's uncle. The defendant was able to submit to the court that on 19 September 2025, her lawyer went to check with the Registrar of Deeds and found that the property title deed registration was still showing continuing ownership by plaintiff.

The Plaintiff's position, however, is that there is no court order of this court or a superior court granting the property back to the plaintiff, his evidence is that, therefore, there is an extant court order which makes this court functus officio to preside over these properties and that the properties do not exist and are simply no longer available for sharing in terms of the Matrimonial Causes Act. The Defendant refused to accept the position averring that these are all lies on the part of the plaintiff. Although these properties may have been purchased whilst the Plaintiff was still legally married to the Defendant, he conceded that the Defendant had made some contributions towards the development of these properties, when asked to estimate a percentage he told the court that a value of 5 % of the properties would suffice to compensate the plaintiff.

New Zengeza (No. 15321), Chitungwiza:

The Plaintiff submitted that he purchased this property whilst he was still a bachelor on 11 May 1994 whilst the Defendant submitted that they had already been customarily married in October 1993 and their legal marriage was on 28 May 1994. This property was donated to the Munetsi Family Trust in 2023, which Trust has three out of the five children born during the subsistence of the marriage as the beneficiaries of the trust. The defendant challenged the donation on the ground that it was done with the intention to deprive the defendant her share in the property. It is prima facie that the Trust was registered in 2023 before these proceedings were instituted in 2024, however, that same trust was also registered soon after the defendant herself had withdrawn divorce summons that she has instituted in 2021, in HCH F 5480/21. The Defendant submitted that she made considerable contributions towards the house especially extending it to become a 7 roomed house using money from chicken projects and cotton farming in Mutoko. The plaintiff submits that as a trust asset, it stands outside either spouse's personal estate and that the court cannot re-vest or pierce a registered trust absent proper pleadings, parties, and legal grounds. The Plaintiff did however concede that "there was a certain level which she managed to contribute" and also pegged her contribution to 5% of the value of the property.

Chipinge (No. 1727 Gaza O):

The property was purchased in 1996 but donated in 2005, it is registered in the name of Chamunorwa Nyaude the plaintiff's father who is now deceased. A copy of a letter from the Chipinge Town Council was produced to prove this ownership. The plaintiff submitted

that his father had been the owner of the property for over 20 years and the defendant has always been aware of this, the property is now subject to the plaintiff's father's deceased estate . The defendant however alleges that the property was donated to plaintiff's father without her consent, that her signature was forged and that the ownership by the defendant's father is a façade. The Defendant's submissions were that at the time the purchase was processed, the Plaintiff sent money to his sister to facilitate and for the building of the house and that at the time, she was not working. The Defendant further told the court that Plaintiff was still reaping rentals from the property.

It is a norm real that rights in immovables vest by registration therefore the court cannot distribute assets not owned by the parties in dispute or properties that are no longer existence. Where third-party rights are implicated, it is prudent to make an application for joinder because the court avoids making orders affecting non-parties to proceedings. Too much time has passed with this property being registered in another person's name for it to be included in this matrimonial estate.

Epworth stand, Eyecourt stand, Mutoko rural home, movables:

Whilst the plaintiff denied the existence of these properties, the defendant was unable to provide any proof of them saying that it is unascertainable. These were no longer pursued at trial therefore there are no longer live issues.

Findings/Disposition

It is a position of our law that at divorce, the court should also distribute the matrimonial assets of the parties. Matrimonial property has been clearly described in *Gonye* v *Gonye* (supra) as the property owned by either party at the dissolution of the marriage. The court endeavours to be equitable but at the same time, as stated in *Kwedza* v *Kwedzwa* (supra) not to leave one without accommodation. Despite the Plaintiff's protests and accusations that the defendant is lying, this court finds it hard to believe that after over 30 years of marriage, and five children later, the Defendant would only be entitled to benefit only 5% value as offered by the Plaintiff. The Defendant not only contributed indirectly as a wife and mother; she also told the court that she had chicken projects and grew cotton in Mutoko to sustain the family. These contributions cannot be ignored. The Plaintiff himself never disputed them.

The Plaintiff has also caused the Defendant to endure a lot, she has had to lose her contributions (whether they be indirect or direct) to two properties which the Plaintiff claims

were lost to a US$65000 debt to his own uncle, she has had to forgo on whatever contributions she made to a property that was donated to the Plaintiff's father and she has also had to forgo a property that was donated to a Trust that benefits three of her five children, a Trust which she did not even qualify to be appointed as trustee despite having made contributions to the same which the Plaintiff acknowledged. The Plaintiff takes the right to dispose of immovable assets that are registered in one's sole name too far by totally disregarding the Defendant's contributions, whether indirect or direct.

The Plaintiff's submissions are that the Defendant failed to make a counterclaim and that she has not claimed unjust enrichment. Fortunately, this court is clothed with wide discretion to avoid injustices that could leave a party homeless. As CHITAKUNYE J (as he was then) in *Kanoyangwa* v *Kanoyangwa (supra)* stated:

> "at the end of the inquiry or trial court must endeavour to distribute the property in such a way as to place the parties and the children in the position they would have been in had a normal marriage relationship continued."

The Defendant is therefore entitled to the value of her contributions to House No. 7810 Belvedere West, Harare; House No. 2269 Hatfield- 44B Airport Road, Harare; House No. 15321 New Zengeza, Chitungwiza whether indirect or direct over the thirty plus years of marriage. There is no way these contributions would amount to anything less than 50% considering the years in the marriage. The values of the properties are to be ascertained through an independent valuator appointed by the court and the Plaintiff is to pay the Defendant her equitable share over 12 months from the date of the court order.

Final Order

It is ordered that,

1. The defendant's claims to 50% distribution of House No. 7810 Belvedere West, Harare; House No. 2269 Hatfield- 44B Airport Road, Harare and House No. 15321 New Zengeza, Chitungwiza are upheld.
2. The aforementioned properties are to be valued by an independent valuator who shall be appointed by the court within three months of the date of this order with both parties sharing the costs of the valuator and valuation.
3. The Plaintiff is to pay the Defendant 50% of the value of the immovable properties mentioned in paragraph 1 over a 15-month period from the date of this court order.

4. The Plaintiff shall bear the costs of suit.

PHILLIPS J…….

Mugiya Law Chambers, legal practitioners for the plaintiff
Mudimu Law Chambers, legal practitioners for the defendant